heads of administering agencies and departments, guidelines with respect to enforcement.

§ 18.12 Exceptions, exclusions, and exemptions.

In the application of the provisions of this part, the following exceptions, exclusions, and exemptions shall apply:

(a) Nothing contained herein shall authorize Federal hunting or fishing licenses or fees;

(b) No fee shall be charged for the use of any waters;

(c) No fee shall be charged for travel by private, noncommercial vehicle over any National Parkway, any road or highway established as part of the national Federal-aid system, or any road within the National Forest System or a public land area, which, although it is part of a larger area, is commonly used by the public as a means of travel between two places, either or both of which are outside the area;

(d) No fee shall be charged any person in the exercise of a right of access to privately owned lands;

(e) No daily entrance or admission fee shall be charged at any area where more than 50 percent of the land within such area has been donated to the United States by a State, unless the Governor of such State or his designee has been advised of such fee at least 60 days prior to its establishment and unless any recommendation of such Governor and all legal and other obligations of the United States to such State with respect to such areas have been taken into consideration;

(f) No fee shall be charged for access to waters or shorelines by those classes of persons which have rights thereto under treaty or law;

(g) No fee shall be charged for commercial or other activities not related to recreation; or for organized tours or outings conducted for educational, scientific, and therapeutic purposes by bona fide institutions established for these purposes.

(h) No entrance or admission fee shall be charged any person conducting State, local, or Federal Government business;

(i) No entrance or admission fee shall be charged at any entrance to Great Smoky Mountains National Park unless such fees are charged at main highway and thoroughfare entrances;

(j) No Federal outdoor recreation fees shall be charged at Designated Fee Areas requiring such fees for persons who have not reached their sixteenth birthday.

§ 18.13 Public notification.

The administering agencies and departments shall notify the public of the specific recreation fees which will be charged for each Designated Fee Area under their respective jurisdictions. Such notification shall be accomplished by posting such information at each area and by local public announcements, press releases, and other suitable means.

§ 18.14 Production, distribution, and sale of permits and revision or interpretation of this part.

(a) The Director, Bureau of Outdoor Recreation, shall issue from time to time to the heads of the administering agencies and departments, as well as other concerned parties, instructions with respect to the production, distribution, and sale of permits.

(b) The Director, Bureau of Outdoor Recreation, shall be consulted prior to their issuance, with respect to agency-wide instructions implementing the regulations in this part. He shall also consider recommendations from the heads of the agencies and departments administering the Designated Fee Areas for revision of §§ 18.2, 18.3, 18.6, 18.8, 18.11, and 18.13 and, based upon justification received, make such revisions, interpretations, and supplements as he deems appropriate.

Dated: November 25, 1970.

WALTER J. HICKEL,
Secretary of the Interior.

[F.R. Doc 70-16230; Filed, Dec. 2, 1970; 8:50 a.m.]

Chapter II—Bureau of Land Management, Department of the Interior

APPENDIX—PUBLIC LAND ORDERS

[Public Land Order 4948]

[New Mexico 11734]

NEW MEXICO

Partial Revocation of Executive Orders Nos. 6143, 6276, and 6583

By virtue of the authority vested in the President and pursuant to Executive Order No. 10355 of May 26, 1952 (17 F.R. 4831), it is ordered as follows:

1. The Executive Orders No. 6143 of May 23, 1933, No. 6276 of September 8, 1933, and No. 6583 of February 3, 1934, withdrawing lands to enable the State of New Mexico to make exchange selections as provided by the Act of June 15, 1926, 44 Stat. 746–748, are hereby revoked so far as they affect the following described lands:

NEW MEXICO PRINCIPAL MERIDIAN

T. 19 S., R. 8 W.,
Sec. 18, N½NE¼;
Sec. 19, lots 2, 3, 4, S½NE¼, SE¼NW¼, E½SW¼, N½SE¼, SW¼SE¼;
Sec. 20, NW¼SW¼, SE¼SW¼, N½SE¼, SW¼SE¼;
Sec. 21, SW¼, N½SE¼, SE¼SE¼;
Sec. 22, SW¼, W½SE¼;
Sec. 23, E½NE¼;
Sec. 28, NE¼, N½NW¼, SE¼NW¼, N½S½, SW¼SW¼;
Sec. 29, N½, N½S½;
Sec. 30, lots 1, 2, 3, E½NE¼, SW¼NE¼, E½NW¼, NE¼SW¼, N½SE¼;
Sec. 31, lots 1, 2, 3, 4, NE¼NE¼, E½SW¼, S½SE¼;
Sec. 33, NW¼NW¼, S½NW¼, NW¼SW¼;
Sec. 35, W½NE¼, W½, NW¼SE¼, SE¼SE¼.
T. 23 S., R. 17 W.,
Sec. 18, S½NE¼, SE¼;
Sec. 19, NE¼NE¼;
Sec. 20, N½N½;
Sec. 21, N½N½.

The areas described aggregate 4,314 acres of which 3,714 acres are privately owned in Hidalgo and Sierra Counties.

The public lands described in T. 23 S., R. 17 W., are located about 6 miles southeast of Lordsburg. Topography is nearly level with deep reddish, silty clay loam. Vegetative cover consists of snakeweed, mesquite and tobosa grasses.

2. At 10 a.m. on January 2, 1971, the public lands shall be open to operation of the public land laws generally, subject to valid existing rights, the provisions of existing withdrawals and the requirements of applicable law. All valid applications received at or prior to 10 a.m. on January 2, 1971, shall be considered as simultaneously filed at that time. Those received thereafter shall be considered in the order of filing.

3. The public lands have been and continue to be open to applications and offers under the mineral leasing laws and to location under the U.S. mining laws for metalliferous minerals. They will be open to location for nonmetalliferous minerals at 10 a.m. on January 2, 1971.

Inquiries concerning the lands shall be addressed to the Manager, Land Office, Bureau of Land Management, Santa Fe, N. Mex.

HARRISON LOESCH,
Assistant Secretary of the Interior.

NOVEMBER 27, 1970.

[F.R. Doc. 70-16224; Filed, Dec. 2, 1970; 8:50 a.m.]

[Public Land Order 4949]

[Anchorage 5683]

ALASKA

Partial Revocation and Modification of Public Land Order No. 659 of August 24, 1950

By virtue of the authority vested in the President and pursuant to Executive Order No. 10355 of May 26, 1952 (17 F.R. 4831), and by virtue of the authority contained in section 4 of the Act of May 24, 1928, 45 Stat. 729, 49 U.S.C. sec. 214 (1964), it is ordered as follows:

1. Public Land Order No. 659 of August 24, 1950, which withdrew public lands for the joint use of the Civil Aeronautics Administration, Department of Commerce, now the Federal Aviation Administration, Department of Transportation, and the Fish and Wildlife Service, now the Bureau of Sport Fisheries and Wildlife, Department of the Interior, for the Lake Hood Seaplane Base, is hereby revoked so far as it affects the following described lands:

SEWARD MERIDIAN

T. 13 N., R. 4 W.,
From the corner common to secs. 26, 27, 34, and 35, T. 13 N., R. 4 W., S.M. running south 0°3' E., 840 feet along the section line common to sections 34 and 35; thence north 89°21' W., 1,830 feet to a point in the centerline of a ramp at the edge of Lake Hood, the true point of beginning; thence south 0°3' E., 285 feet along centerline of the ramp and the access road to International Airport to a point; thence north 89°21' W., approximately 290 feet to a point in the west boundary of the Lake Hood Seaplane Base established by PLO 659 of August 24, 1950 (15 F.R. 5912); thence north 0°3' W., approximately 285 feet along the west boundary of the seaplane base to a point on the shore of Lake Hood; thence south 89°21' E., approximately 290 feet along the shore of Lake Hood to the point of beginning.

Containing approximately 1.90 acres.

The land described above was conveyed to the State of Alaska on November 30, 1964, pursuant to section 6(e) of the Alaska Statehood Act of July 7, 1958, 72 Stat. 339.

2. Public Land Order No. 659 of August 24, 1950, is hereby amended so that the following described area is reserved under sole jurisdiction of the Bureau of Sport Fisheries and Wildlife, Department of the Interior, for use as the Lake Hood Seaplane Base:

SEWARD MERIDIAN

T. 13 N., R. 4 W.,
In sec. 34, beginning at the southeast corner of lot 7, as shown on the supplemented plat of survey approved July 5, 1960 (formerly lot 1), thence by metes and bounds, south 132 feet; west 792 feet; north 924 feet; east 792 feet; south 792 feet, to the point of beginning; excepting the land conveyed to the State of Alaska described in paragraph 1 above.

Containing approximately 10.04 acres of land area and approximately 4.86 acres of water area.

3. The amendment made by this order does not otherwise serve to change the status of the lands described above in paragraph 2 as withdrawn by Public Land Order No. 659.

HARRISON LOESCH,
Assistant Secretary of the Interior.

NOVEMBER 27, 1970.

[F.R. Doc. 70-16203; Filed, Dec. 2, 1970; 8:48 a.m.]

[Public Land Order 4950]

[New Mexico 9506]

NEW MEXICO

Withdrawal for Pecos River Basin Water Salvage Project

By virtue of the authority contained in section 3 of the Act of June 17, 1902, 32 Stat. 388, as amended and supplemented, 43 U.S.C. sec. 416 (1964), it is ordered as follows:

Subject to valid existing rights, the following described public lands which are under the jurisdiction of the Secretary of the Interior, are hereby withdrawn from all forms of appropriation under the public land laws, including the mining laws (30 U.S.C., Ch. 2), but not from leasing under the mineral leasing laws, and reserved for the Pecos River Basin Water Salvage Project, New Mexico:

NEW MEXICO PRINCIPAL MERIDIAN

T. 21 S., R. 27 E.,
Sec. 33, SW¼SE¼NE¼.

The area described aggregates 10 acres in Eddy County.

HARRISON LOESCH,
Assistant Secretary of the Interior.

NOVEMBER 27, 1970.

[F.R. Doc. 70-16225; Filed, Dec. 2, 1970; 8:50 a.m.]

[Public Land Order 4951]

[Idaho 3209, 3288]

IDAHO

Partial Revocation of Reclamation Project Withdrawals

By virtue of the authority contained in section 3 of the Act of June 17, 1902, 32 Stat. 388, as amended and supplemented, 43 U.S.C. sec. 416 (1964), it is ordered as follows:

1. The departmental orders of November 17, 1902, March 21, 1907, and October 7, 1908, and July 5, 1921, and any other orders withdrawing lands for the Minidoka Project, are hereby revoked so far as they affect the following described lands:

BOISE MERIDIAN

T. 7 S., R. 18 E.,
Sec. 16.
T. 8 S., R. 26 E.,
Sec. 4, lots 1 to 4, inclusive, S½N½, N½SW¼, SE¼SW¼, SE¼;
Sec. 5, lots 1 to 4, inclusive, S½N½, NE¼SW¼, N½SE¼;
Sec. 9, NE¼, N½NW¼, SW¼NW¼, W½SW¼, N½SE¼;
Sec. 16;
Sec. 25, N½S½.
T. 9 S., R. 27 E.,
Sec. 9, E½SE¼;
Sec. 15, N½S½;
Sec. 24, W½NW¼.
T. 4 S., R. 33 E.,
Sec. 30, SE¼NW¼.

The areas described aggregate 3,354.76 acres in Jerome, Blaine, Cassia, and Bingham Counties, of which 400 acres are public lands withdrawn for the Minidoka National Wildlife Refuge, 1,194.76 acres are patented lands, and 1,280 acres are State-owned lands. The remainder, which are described as follows, are unreserved public lands:

BOISE MERIDIAN

T. 8 S., R. 26 E.,
Sec. 4, NW¼SW¼, SE¼SE¼;
Sec. 5, lot 4, SW¼NW¼;
Sec. 9, NE¼NE¼, S½NE¼, N½SE¼.
T. 9 S., R. 27 E.,
Sec. 9, E½SE¼.
T. 4 S., R. 33 E.,
Sec. 30, SE¼NW¼.

The areas described aggregate 440 acres in Blaine County, and 40 acres in Bingham County.

The lands in Blaine County are located from 3 to 12 miles east of Minidoka, Idaho. Their surface is extremely rough and rolling with numerous rock outcrops. Vegetation is sagebrush and cheatgrass. The land in Bingham County is located about 2½ miles from Springfield, Idaho. The surface is rolling with scattered rock outcrops. Soils are silt loam. Vegetation is sagebrush, cheatgrass, and greasewood.

2. At 10 a.m. on January 2, 1971, the unreserved public lands described above will be open to the operation of the public land laws generally, including location under the U.S. mining laws, subject to valid existing rights, the provisions of existing withdrawals, and the requirements of applicable law. All valid applications received at or prior to 10 a.m. on January 2, 1971, shall be considered as simultaneously filed at that time. Those received thereafter shall be considered in the order of filing. These lands have been and continue to be open to the filing of applications and offers under the mineral leasing laws.

Inquiries concerning the lands should be addressed to the Manager, Land Office, Bureau of Land Management, Boise, Idaho.

HARRISON LOESCH,
Assistant Secretary of the Interior.

NOVEMBER 27, 1970.

[F.R. Doc. 70-16226; Filed, Dec. 2, 1970; 8:50 a.m.]

[Public Land Order 4952]

[Sacramento 3527]

CALIFORNIA

Withdrawal for National Forest Recreation Areas

By virtue of the authority vested in the President and pursuant to Executive Order No. 10355 of May 26, 1952 (17 F.R. 4831), it is ordered as follows:

1. Subject to valid existing rights, the following described national forest lands are hereby withdrawn from appropriation under the mining laws (30 U.S.C., Ch. 2), but not from leasing under the mineral leasing laws, in aid of programs of the Department of Agriculture:

KLAMATH NATIONAL FOREST

MOUNT DIABLO MERIDIAN

Shadow Creek Camping Site

T. 39 N., R. 11 W.,
Sec. 36, that portion lying above the junction of Shadow Creek and the East Fork of the South Fork of the Salmon River and to Forest Highway 93.

HUMBOLT MERIDIAN

Hotelling Gulch Camping Site

T. 10 N., R. 8 E.,
Sec. 28, S½NE¼ lot 5, NW¼SE¼ lot 5.

The areas described contain approximately 21 acres in Siskiyou County.

2. The withdrawal made by this order does not alter the applicability of those public land laws governing the use of the national forest lands under lease, license, or permit, or governing the disposal of their mineral or vegetative resources other than under the mining laws.

HARRISON LOESCH,
Assistant Secretary of the Interior.

NOVEMBER 27, 1970.

[F.R. Doc. 70-16204; Filed, Dec. 2, 1970; 8:48 a.m.]

[Public Land Order 4953]

[Nevada 051787]

NEVADA

Revocation of Air Navigation Site Withdrawal

By virtue of the authority contained in section 4 of the Act of May 24, 1928,